

English Speech

Main Question:

How does the US CLOUD Act violate the privacy of ordinary citizens, even when their digital data is stored outside the US?

Context: What is the Cloud Act

The US CLOUD Act is a 2018 US law which enforces US-based tech companies to provide law enforcement with data they control, regardless of where the servers, the data is stored on, are physically located.

Speech

Quick show of hands - who in this room has ever used iCloud, Gmail, Instagram or Snapchat? Yeah thought so. Now here's the thing: Even if you never stepped a foot in to America, a US law called the *CLOUD Act* allows U.S law enforcement to access your personal data right now. All of your chats, every single Message you sent, each and every Photo you shared. Right in this very moment. Sounds like a bit of a horror scenario right?

But let me break this down for you; what is this *CLOUD Act* I've been talking about?

The *CLOUD Act* - that's short for „Clarifying Lawful Overseas Use of Data“. This law was passed back in 2018. Now Think of Meta, Apple, Google or Snapchat. All of those companies have one crucial Resemblance - Each and every one is a U.S. based Company.

And this means US authorities can legally force that company to hand over your data. It doesn't matter if your Photos or Messages are sitting on servers that are physically located in Virginia, Berlin or even right here in Auckland.

None of that matters! The only thing that does, is that those companies are American Based.

But hold on - How is that even allowed. The U.S. isn't in charge of neither New Zealand nor Europe or every other part of the World! So how can a U.S. law reach us over here?

The answer is: the US doesn't claim power over our country. They claim power over their companies. And since those companies operate everywhere, their reach goes everywhere too.

They don't need to ask a New Zealand court. They don't even need permission from those countries. They just go straight to the company.

Alright — so US companies have to follow the CLOUD Act. Everyone still with me?. But before we dive even further into this let's take a step back:

What actually happens when you send a Snap or a simple text message?

They don't just magically appear on the phone of your friend. They get sent to a real physical computer sitting in a building somewhere - This machine is called a server. And thousands of those servers, stacked in giant warehouses - That's ,the cloud'. Just someone else's computers. The Internet may be fascinating but it isn't Witchcraft

Now I'm gonna tell you a secret - at least that's what most people think it is! Most companies don't own their servers! They rent access to them. Specifically, they rent access to multiple servers across different locations - A server Cluster.

And Three companies are dominating this business of renting those gigantic server clusters to other companies: Amazon, Google, and Microsoft.

Amazon's version is called Amazon Web Services, Google's is called Google Cloud and Microsoft's is called Azure.

And this goes deep. The Reserve Bank of New Zealand — the institution running this country's entire money system — stores data on AWS. ANZ Bank uses Google Cloud. Our own government has official agreements with both of them. And it's not just banks and governments — Netflix runs almost its entire service on Amazon's servers too. Basically half the internet you use every day is sitting on infrastructure owned by three American companies.

So you might now ask yourselves, Why should I care? I don't have nothing to hide! Who does this even affect? Criminals, Terrorists? Big corporations with something to hide? No, it affects Everyone in this room! Ordinary people like you and me.

Remember the show off hands? Every single one of you uses American services like iCloud, Snapchat or Instagram on a daily basis. Which means every photo you've ever backed up, each and every message you've ever sent. Even your own NZ banking runs on servers owned by American companies. And all of it falls under this American law.

And here's the part most people don't realise: if this happens to you, you will never know. There's no email. No notification. No knock on the door. It just happens — quietly, in the background.

And you don't have to do anything wrong for this to reach you. Imagine a friend gets caught up in something. Your name comes up in one chat...

That's enough for your data to become part of an investigation. Just like that: Your Private Messages and Photos become Evidence.

A US judge signs off on it. The company hands it over. And that's it. No New Zealand court involved. Nobody asks for your consent. Nobody warns you. You just... never find out.

You could walk out of this room today, and it could already have happened.

Now, to be fair, we can't just start a discussion without any counter argument. The US government says it's needed to catch criminals and terrorists faster.

Before the CLOUD Act, getting evidence across borders could take months.

But here's my problem with that: the issue was never that the police needs evidence. The issue is who decides. And that's not us. It never was!

And you don't get asked. You don't get notified. You don't even get the chance to object — because you're not the one on trial. You're just... in the file. Your private messages become evidence in a case you've never heard of, in a country you've never been to. And nobody has to tell you."

Okay. This is bad. But what can you do about that? Do you just need to accept it?

No, you don't!

Look, I'm not going to stand here and tell you to delete Instagram tomorrow. **You won't.** And honestly, **I won't either.**

But the most important step is the one you've already taken by listening — just knowing this exists. Because you can't push back against something you've never heard of. Most people in this country still don't know this law applies to them. **You do.**

But there are a few more things that make a real difference.

If you've got an iPhone — turn on Advanced Data Protection. It's in your iCloud settings, takes two minutes. I could show you right now.

Here's what it does: everything you sync to iCloud is locked — but Apple keeps a spare key. Someone asks, Apple opens it, hands it over.

Turn this on, and your iPhone changes the lock. Apple's key doesn't work anymore. You just locked Apple out of your own data. Now when they ask, there's nothing to give.

Second: think about where you send private stuff.

Not every app protects your messages the same way. Snapchat messages aren't properly locked — Snap themselves can read them. So if it's actually private, don't send it as a Snap

Signal or iMessage is properly locked, meaning not even the company can see what you wrote.

That's called end-to-end encryption. Basically: your message gets scrambled the moment it leaves your phone, and only your friend's phone can unscramble it.

Everything in between — including the company itself — just sees nonsense.

And the third one is the simplest, and honestly the most useful.

Just think for a second before you send something.

Not because someone's definitely watching right now — but because once it's out there, it's not yours anymore. You can't take it back.

The Internet **NEVER FORGETS**.

I started by asking you to raise your hands. Almost every one of you did.

So let me leave you with this. Nobody asked you. Nobody told you. Nobody gave you a choice. And that's exactly the problem.

Your data should be yours. Not because you've got **something to hide** — but because it's yours.